

A. to receive the rents" (*k*), the legal estate is executed in A. However, if the *lands be devised to [*211] three persons and their heirs in trust, to permit A. to receive the *net* rents for her life for her own use, and after her death to permit B. to receive the *net* rents for her life for her sole and separate use, with remainder over and a power of sale to the trustees, it has been held that the legal estate is in the trustees, for they are to receive the rents, and thereout pay the land-tax and other charges on the estate, and hand over the *net* rents only to the tenant for life (*a*).

[4. **Maintenance clause.**—And where real estate was devised to trustees their heirs and assigns, to the use of A. for life with remainder to the use of such child or children of A. as should attain twenty-one as tenants in common in fee, with remainders over, and the testator "empowered his trustees to apply the income to which under the disposition thereinbefore contained any infant devisee should be presumptively or otherwise entitled towards the maintenance and education or otherwise for the benefit of such devisee during his minority," it was held by V. C. Hall that the legal fee was in the trustees, inasmuch as the provision for maintenance showed that the intention was that the trustees should, under the disposition to them their heirs and assigns, take an estate by virtue of which they would receive the rents and profits (*b*).]

5. **Charge of debts.**—If the legal estate be limited to the trustees *charged with debts*, or *annuities*, and subject thereto in trust for A., but no direction to the trustees personally to *pay* the debts or annuities (*c*), here, as the trustees have no agency assigned to them, but merely stand

(*k*) *Boughton v. Langley*, 1 Eq. Ca. Ab. 383; S. C. 2 Salk. 679, overruling *Burchett v. Durdant*, 2 Vent. 311; *Right v. Smith*, 12 East, 455; *Wagstaff v. Smith*, 9 Ves. 524, per Sir W. Grant; *Gregory v. Henderson*, 4 Taunt. 773, per Heath, J.; *Warter v. Hutchinson*, 5 Moore, 143; S. C. 1 B. & C. 721; *Barker v. Greenwood*, 4 M. & W. 429, per Parke, B.

(*a*) *Barker v. Greenwood*, 4 M. & W. 421; *White v. Parker*, 1 Bing. N. C. 573.

[(*b*) *Berry v. Berry*, 7 Ch. D. 657.]

(*c*) *Kenrick v. Lord Beauclerk*, 3 B. & P. 175; *Jones v. Lord Say & Sele*, 8 Vin. Ab. 262. But see *Creaton v. Creaton*, 3 Sm. & G. 386; *Baker v. White*, 20 L. R. Eq. 174; and see *Collier v. McBean*, 34 Beav. 426.